Fair Work Commission - Form F3 - Employer response to unfair dismissal application

Matter number: U2026/4821 | Applicant: Marisol Reyes | Date lodged: 4 June 2026

Respondent: Harbourline Freight Pty Ltd, ABN 11 222 333 444

Representative: Gareth Coyle, Barrett Coyle Employment Lawyers, Level 9, 15 Harbour Road, Sydney NSW 2000

1. Jurisdictional objections

• Was the application made within 21 days? Yes. No objection is taken on time.

• Is the respondent a small business employer? No. Harbourline has 142 employees.

• Was the dismissal a case of genuine redundancy? No.

2. Date of dismissal

12 May 2026, as stated in Harbourline's corrected letter of 11 May 2026.

3. Reason for dismissal

Serious misconduct: knowingly releasing consignment HF-88213 with an incorrect weight declaration of 18.4 tonnes when the actual weight was 21.9 tonnes, and failing to attend the mandatory toolbox meeting on 8 April 2026.

4. Process followed

Harbourline gave written particulars of the allegations on 20 April 2026 and 24 April 2026, suspended the applicant on full pay on 21 April 2026 and considered her response of 28 April 2026 before deciding to dismiss. Warnings issued to the applicant before 20 April 2026: none.

5. Other matters

Harbourline denies that the safety complaint of 12 March 2026 or the wage query of 17 March 2026 played any part in the decision. Harbourline says reinstatement is inappropriate because of a loss of trust and confidence. Harbourline denies the overtime and leave loading claims and says the base rate of $46.20 is inclusive of overtime.

Signed: Gareth Coyle, 4 June 2026